

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #12	CCRB Case #: 201705812	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☒ Injury
Incident Date(s) Saturday, 07/15/2017 7:45 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 1/15/2019	Precinct: 07
Date/Time CV Reported Tue, 07/18/2017 12:36 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/18/2017 12:36 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Andre John	26836	948227	PSA 4
2. POM Augustine Gonzalez	04096	950514	PSA 4

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Muhammad Iyaz	18018	958717	PSA 4

Officer(s)	Allegation	Investigator Recommendation
A . POM Andre John	Abuse: Police Officer Andre John forcibly removed § 87(2)(b) to the hospital.	A . Exonerated
B . POM Augustine Gonzalez	Abuse: Police Officer Augustine Gonzalez forcibly removed § 87(2)(b) to the hospital.	B . Exonerated
C . POM Andre John	Force: Police Officer Andre John used physical force against § 87(2)(b)	C . Exonerated
D . POM Augustine Gonzalez	Force: Police Officer Augustine Gonzalez used physical force against § 87(2)(b)	D . Exonerated
E . POM Andre John	Off. Language: Police Officer Andre John made remarks to § 87(2)(b) based upon her gender.	E . Unsubstantiated

Case Summary

On July 18, 2017, § 87(2)(b) filed this complaint with the CCRB via telephone.

On July 15, 2017, at 7:45 p.m., § 87(2)(b) was standing

§ 87(2)(b) in Manhattan with a chair in her possession. Police Officer Andre John and Police Officer Augustine Gonzalez, both of PSA 4, approached § 87(2)(b) and asked her why she was swinging the chair at other civilians. After § 87(2)(b) disputed the officers' claim, PO John and PO Gonzalez decided to remove her to the hospital as an Emotionally Disturbed Person (EDP) (**Allegations A and B: Abuse of Authority, exonerated**). The officers then placed § 87(2)(b) in handcuffs and allegedly took her down to the ground (**Allegations C and D: Force, exonerated**). PO John then allegedly said, "Bitch, didn't I tell you to take your section 8 out of apartment § 87(2)(b) and New York City" (**Allegation E: Offensive Language, unsubstantiated**). The officers then called an ambulance to the location and § 87(2)(b) was taken to § 87(2)(b). Police Officer Muhammad Iyaz and Police Officer Emmanuel Concepcion, also of PSA 4, responded to the location. PO Iyaz escorted § 87(2)(b) to the hospital in the ambulance.

The investigation obtained video footage from the NYCHA complex where the incident occurred; however, this particular interaction was not depicted. § 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Andre John forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: Police Officer Augustine Gonzalez forcibly removed § 87(2)(b) to the hospital.

Allegation (C) Force: Police Officer Andre John used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Augustine Gonzalez used physical force against § 87(2)(b)

It is undisputed that when PO John and PO Gonzalez approached § 87(2)(b) she had a chair in her possession. It is also undisputed that the officers placed § 87(2)(b) in handcuffs; after which, they called for an ambulance and § 87(2)(b) was taken to § 87(2)(b).

During her CCRB interview, § 87(2)(b) stated that she was entering her apartment building with her kitchen chair after watching a street fair when she was approached by PO John, PO Gonzalez, and approximately four to five additional officers (Board Review 01). § 87(2)(b) used the kitchen chair because she was previously told that she could not sit on the benches. Upon approach, the officers circled around her and PO John told her that he was informed she was hitting others with the chair. In response she told him that she knew he was lying, and then PO John said that he was going to call an ambulance to the scene. PO John and PO Gonzalez then grabbed her arms, which she "bent in a T-shape," took her down to the ground causing her to fall hard on her buttocks, and placed handcuffs on her. Within 10 minutes of the interaction, an ambulance arrived and § 87(2)(b) was taken to § 87(2)(b). A police escort did not go with the § 87(2)(b) and the EMTs to the hospital.

In her initial complaint to the CCRB, § 87(2)(b) solely mentioned that she was handcuffed and she did not say that she was taken to the ground by the officers.

§ 87(2)(b) alleged that she sustained bruising to her buttocks as a result of the force; however, she refused to sign a HIPPA form so that the investigation could access the medical records.

PO John stated that while positioned at a fixed post inside a community center at § 87(2)(b) two females entered and informed him and PO Gonzalez that § 87(2)(b) (b) was swinging a chair at other civilians (Board Review 02). When PO John saw § 87(2)(b) he recognized her from previous interactions. When the officers attempted to approach § 87(2)(b) she attempted to flee by running in between PO John and PO Gonzalez. PO John grabbed one of her wrists and PO Gonzales grabbed the other, and as soon as they did so § 87(2)(b) stopped. They placed her hands behind her back and in handcuffs. § 87(2)(b) did not resist the handcuffing; however, after she was handcuffed she went down to her knees and she began to speak incoherently. PO John called an ambulance to the location to have § 87(2)(b) assessed. She willingly went into the ambulance and to the hospital.

PO Gonzalez § 87(2)(g) stated that when the officers approached § 87(2)(b) she began to speak erratically and incoherently while waving her arms around, almost hitting the officers in the face. Because she almost hit the officers multiple times and the nature of the complaint against her, she was placed in handcuffs for their safety. The only action necessary to place § 87(2)(b) in handcuffs was placing her arms behind her back. § 87(2)(b) sat down on the ground after she was placed in handcuffs.

PO Iyaz responded to the location after receiving a radio run for an emotionally disturbed person (Board Review 04). PO Iyaz did not witness any part of the initial interaction between § 87(2)(b) and PO John and PO Gonzalez. When he arrived on scene, § 87(2)(b) was being placed in the ambulance by EMTs. PO Iyaz obtained the information necessary to complete the AIDED report from the EMTs after arriving at the hospital.

A review of the AIDED report for this incident showed that PO Iyaz noted that § 87(2)(b) was under the influence of an unknown drug and placed herself and others in physical danger (Board Review 13).

An inquiry into any and all event related permits issued on § 87(2)(b) was sent to the 7th Precinct (Board Review 05). The result of the inquiry showed that there was only one permit issued for that date, which was for a stickball game that took place on § 87(2)(b) parade permits were identified.

A review of detailed Event number § 87(2)(b) showed that a female caller told the 911 operator that there was a mentally ill and violent female “swinging [a] chair around” in the vicinity of the incident location (Board Review 06). No injuries were reported in relation.

The Event Unit Information shows that PO Iyaz and PO Concepcion, assigned to sector D, were the only officers to arrive at the scene as a result of the 911 call (Board Review 07). Sector D notified 911 dispatch that they arrived on scene at 7:08 p.m.; after which, they immediately notified 911 dispatch they were going to the hospital.

Patrol Guide Procedure 221-02 (Board Review 08) Officers may utilize de-escalation techniques when appropriate and consistent with personal safety which may reduce or eliminate the need to use force, and increase the likelihood of gaining the subject’s voluntary compliance. Officers may use reasonable force to gain control of the non-complaint individual if necessary.

Patrol Guide procedure 221-13 (Board Review 09) When an officer reasonably believes that a person who is apparently emotionally disturbed must be taken into protective custody because the person is conducting themselves in a manner likely to result in a serious injury to themselves or others and the person is willing to leave voluntarily, they may take the person into custody without the specific instruction of a supervisor.

§ 87(2)(g)

§ 87(2)(g)

. Therefore, it is recommended that **Allegations A, B, C, and D** be *exonerated*.

Allegation (E) Offensive Language: Police Officer Andre John made remarks to § 87(2)(b) based upon her gender.

It is undisputed that PO John and PO Gonzalez and § 87(2)(b) had interacted prior to the incident under investigation when § 87(2)(b) was a victim of domestic violence.

§ 87(2)(b) stated that after she was taken to the ground, she told PO John that he was a bad man. In response, PO John said “Bitch, didn’t I tell you to take your section 8 out of apartment § 87(2)(b) and out of New York City (Board Review 01).

PO John stated that after the officers placed § 87(2)(b) in handcuffs, she began to ask him why he was doing what he was doing and what was “going on.” She made additional incoherent and erratic statements. PO John responded by telling her that he was there to help her, in an attempt to calm her down. PO John did not make any additional statements after § 87(2)(b) repeated herself over and over again. PO John did limit his conversation with § 87(2)(b) because he was aware of her inability to have a coherent conversation. PO John did

not say, “Bitch, didn’t I tell you to take your section 8 out of apartment § 87(2)(b) and out of New York City,” at any point (Board Review 02).

PO Augustine stated that after § 87(2)(b) began to incoherently ramble, the officers attempted to calm her down by telling her that everything was okay and that they were going to get her help. He did not hear PO John say, ““Bitch, didn’t I tell you to take your section 8 out of apartment § 87(2)(b) and out of New York City,” at any point (Board Review 03).

Neither PO Iyaz nor PO Concepcion were present when the allegation took place.

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be *unsubstantiated*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or on behalf of § 87(2)(b) (Board Review 10).
- This is the second CCRB complaint filed against PO John, who has had one allegation made against him and has been a member of service for eight years (see officer history). The force allegation made against PO John was truncated.
- This is the second CCRB complaint filed against PO Gonzalez, who has three allegations in his CCRB history and has been a member of service for six years (see officer history). Physical force, entry and search, and an abuse: other allegations made against PO Gonzalez in CCRB case number 201601869 were substantiated. The Board recommended formalized training and the NYPD issued a penalty of formalized training.

Mediation, Civil and Criminal Histories

- This case was deemed as unsuitable for mediation § 87(2)(b)
- As of November 27, 2017, a FOIL request confirmed that a Notice of Claim was not filed with the NYC Comptroller’s office (Board Review 11).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 12

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date